DRAFT v0.1 for Minda: Fishbone's chronology, rebuilt from statement v0.7 and the documents we hold

Prepared by Victoria, 2 Nov 2026. Working note for your hearing preparation. **Not for filing and not a replacement for the Chronology already filed (FC0000004).** Not legal advice. Whether and how to correct the filed Chronology is for the court office or an adviser. Where a point depends on you or on a witness who has not yet answered, it is marked **[CONFIRM]**. Times are UK time.

Basis column. DOC = a document we hold. V0.7 = your statement. MSEM-DOC = an exhibit of theirs. WITNESS = what a witness told you (hearsay until they confirm in writing).

Date and time	Fishbone's account	Basis	Notes
Before 26 Nov 2025	Macdonald Joinery asks you by phone, not in writing, for Fishbone to take over the site management of the BBC Cardiff toilet job (FC2520)	V0.7 para 3	Oral only
26 Nov	Pre-start meeting at the BBC; you and Mikheil see Central Square and Roath Lock	V0.7 paras 3, 9; Mikheil agrees	
28 Nov 15:34	Geoff Smith emails you and Mikheil: Fishbone to supply ancillary items (fixings, adhesives, silicones) for the toilet and tea-point projects	MSEM-DOC (MD8)	Shows Macdonald dealing with you directly
1 Dec	Mikheil starts on site as site manager. Verbal agreement at £300 a day, no written agreement, no fixed end date. Fuel and accommodation agreed; full Fridays paid only if all works are completed on schedule (oral)	V0.7 paras 4–6	The Friday condition rests on your word. Telegram group created 1 Dec
2 Dec to 6 Feb	Mikheil posts daily progress photographs and sign-in register photographs to the Telegram group	DOC (MG1); MSEM-DOC (MD12)	Register ends 6 Feb; none for 9–13 Feb
Dec	Fishbone supplies and pays the labour: two Torin carpenters and Raitis Bikovs; Mikheil directs them as site manager	V0.7 para 7	Mikheil: he had no authority over labour (his paras 5, 99)
Dec	You are site manager at Roath Lock; Mikheil at Central Square	V0.7 para 9; MSEM agrees (his para 2)	
7 Jan 2026 13:07	Liam Price (EMCOR) writes to Macdonald, copying you: he has been told Mikheil is managing both sites; he needs a site manager on both at all times; daily complaints that there is none at Roath Lock	DOC (info@, "Site Management")	Shows both-site management had started by 7 Jan, not mid-December as Mikheil says
7 and 12 Jan	Andrew Macdonald: "taking steps" (7 Jan); "an English-speaking working Site Foreman on site at Roath Lock", named as Oleksii 'Alex' Starovoitov, mobile number in the email file (12 Jan)	DOC	Rebuts Mikheil's para 15 (no extra management support). **V0.7 para 9 needs rewording**: by 12 Jan Alex was the Roath Lock foreman
First working week of Jan 2026	Macdonald says by phone they are unhappy with costs and one site manager is enough for five operatives across both sites; you leave Mikheil as site manager on both	V0.7 para 9	Mikheil puts the change in mid-December (his paras 3, 12). His 12 Jan emails show him working on Roath Lock (MD11). **[CONFIRM]** against the 7 and 12 Jan emails
21 Jan 08:22	Liam Price: Roath Lock management "completely unacceptable", no daily FM briefing; "Work has progressed well and the quality of work is good". Macdonald asks you to sort it that day. 15:12 you reply that you spoke to Liam at about 11:00 and "Mikheil and Alex every morning will have little meetings with FM"	DOC (info@)	Shows you instructed Mikheil to brief the FM team; supports a duty to report
17 Jan	You and Andrejus fly Kaunas to Edinburgh, then train to Newcastle	DOC	Whereabouts only

Date and time	Fishbone's account	Basis	Notes
23 Jan	Two adults travel Cardiff to London	DOC (LNER)	**[CONFIRM]** who travelled
26–30 Jan	Raitis Bykovs at Travelodge Cardiff Atlantic Wharf	DOC	
29 Jan	Pabis and Mr Kogut go to Guernsey (Premier Inn, 29 Jan to 6 Feb)	DOC; Minda 2 Nov	Pabis does not return until the 12 Feb ferry
30 Jan	A meeting takes place at the BBC. You did not attend. Same day Mikheil phones you, says he needs to finish and will be ready for handover; no mention of defects or need for help	V0.7 para 10; MD14 shows his phone calling you at 09:20	**[CONFIRM]** who told you it was a pre-handover meeting, and when he phoned. Mikheil says the meeting was about the Roath Lock kitchens
2 Feb	Andrejus stays at Cardiff Atlantic Wharf	DOC	Mikheil says you visited briefly about a vehicle: **[CONFIRM]**
3 Feb	Drulia starts as site manager on FC2602, BBC Roath Lock toilets. You say you were on site	V0.7 para 15; MG6 (your two calls, each under 30 seconds)	**[CONFIRM]** what happened on site. Pabis was in Guernsey, so v0.7 para 15 needs rewording
3 Feb 18:20	Cardiff flat booked for 6–13 Feb, 3 adults, guest Andrejus; confirmation forwarded by Drulia	DOC	**[CONFIRM]** who stayed
5 Feb 09:01	You phone Mikheil. You ask whether he needs spare labour and whether he is working the weekend. He says he is in control, not working the weekend, "not to worry". He asks for no help and reports no problem	V0.7 para 12; DOC (MG6)	Mikheil says he raised gaps and finishing needs by phone around 6 Feb (his para 36); his phone called you at 15:35 on 6 Feb (2m 37s). **[CONFIRM]** whether you remember that call
4–6 Feb	4 Feb 15:32 Dave Newell (J4) asks David Macdonald and Liam Price: "Does Thursday next week work for a final site meeting for the WCs?" 6 Feb 12:43 David Macdonald forwards it to you: "Please see date for snag and handover of the toilets." 13:01 you reply: "Yes, Thursday perfect." (Thursday = 12 Feb)	DOC (info@, "FW: Cardiff WCs")	**Written notice of the 12 Feb meeting reached you by email on 6 Feb.** V0.7 para 6 says the date was given by J4 by phone and "not put in writing"; it needs correcting
7 Feb (Sat)	Programme shows testing and commissioning starting	DOC (MG2)	Both buildings open at weekends (v0.7 para 13)
8 Feb	MSEM invoice 553 dated 8 Feb (£1,898). Drulia's invoice states 6 days "Cardiff BBC" for the week	DOC	
9 Feb	The programme's snagging meeting does not take place; the final site meeting is fixed for Thursday 12 Feb (see 6 Feb email above)	V0.7 para 6; DOC (6 Feb emails)	The 6 Feb emails don't say the 9 Feb meeting was cancelled, only that 12 Feb was the final site meeting. A J4 phone call is not documented. **[CONFIRM]** whether you or Andrejus visited the site: no ticket or hotel shows it; a London hotel was booked for Andrejus that day. Mikheil says you both attended and met him in the café
10 Feb 10:27	Mikheil sends you a video (his account: door gaps, in Russian)	MSEM (his para 48)	Your account (para 14): a damaged panel with a colour label. **Check the WhatsApp export and the video**
10 Feb	His phone calls you at 10:36 (1 minute). At 13:03 you phone him about the panel; he sends a photograph of the panel label at 13:35. It was the only problem he raised with you in writing	V0.7 para 14; DOC (MG5, MG6); MD14	

Date and time	Fishbone's account	Basis	Notes
11 Feb 11:55–14:19	You email Brittany Ferries Guernsey Freight (signed Andrejus Prutkovas, Fishbone Construction) to book the Ford Custom van NJ17CWK, Guernsey to Portsmouth on 12 Feb, for Mr Sebastian Pabis and Mr Anton Kohut; £711.81 quoted; Andrejus's number given as (number in the email file). Pabis's ferry booked (departs 08:15)	DOC (info@)	Mikheil says "Danila" started remedial work at Central Square on 11 Feb: **[CONFIRM]** with Drulia
12 Feb	Handover (snagging) meeting at Central Square. You were not there; Drulia attended on Fishbone's behalf	V0.7 paras 15–16; Chronology	**[CONFIRM]** Drulia's presence. Mikheil says he went round briefly and was told a list would follow
12 Feb 15:11	Dave Newell (J4) emails 16 snagging items "following the snagging meeting today"; "We will need to delay handover until items 1–16 are complete". 15:32 David Macdonald forwards it: "This is just the start of it"	DOC (MG7)	List: set-out of cubicles and floor, silicone, aligning panels, shadow gaps, bubbles on doors, damaged edges
12 Feb	Pabis crosses from Guernsey (arrives Portsmouth 15:45). Pabis and Drulia are booked into Travelodge Pencoed (13:24, 13:30)	DOC	Pabis cannot have attended the 12 Feb meeting
13 Feb 11:41, 11:47	Dave Newell (J4) sends you two Teams invitations, "Cardiff": first for 12:00–12:30, then (11:47) moved to **14:00–14:30**; invitees David Macdonald, Liam Price, you (info@). Newell's 12 Feb 15:11 email had suggested "a call tomorrow to run through"	DOC (info@, invite.ics)	Mikheil was not invited. Whether you joined is not shown by the invite; check the Teams record. **[CONFIRM]** you were on the call at 14:00 on your way to Cardiff, and why Andrejus had a Kings Cross room that night.
13 Feb	You join the Teams meeting with Dave Newell, Liam Price and David Macdonald about the snagging, on your way to Cardiff. You arrive that night and are not on site	V0.7 para 17	Mikheil's phone shows no call to you or Andrejus that day. Mikheil's phone shows no call to you or to Andrejus that day
13 Feb	Mikheil is working on the snagging with the new operatives: his emails of 12:57 and 13:38 mention Sebastian and "Daniela" snagging, and he books Sebastian's parking from 13:00	MSEM-DOC (MD16)	Pabis and Drulia told you he was on site until about noon (hearsay). **Safer wording: he left on 13 February. [CONFIRM]** who saw him leave and when
13 Feb 15:16	Geoff Smith writes that the project is "an unmitigated disaster" and asks "Are these your guys or Minda's?"	MSEM-DOC (MD16)	
13 Feb 16:05	Mikheil: "I got blamed for everything and got removed. I am on the way home."	MSEM-DOC (MD16)	You say you did not tell him to leave or go home (v0.7 para 20)
13 Feb	Invoice 552 paid	V0.7 para 21	
14 Feb	You and Andrejus go to the site and plan the rectification with Drulia and Pabis. They tell you he has left, in their words had "finished his ten-week project", and was on site on 13 Feb	V0.7 para 19	**[CONFIRM]** each of them confirms this in writing. Pabis arrived after 12 Feb 15:45
13 Feb to 1 Mar	Fishbone pays for labour and materials to put the work right: Snag Doctor £530.00; Kogut £1,400.00; Drulia £2,300.00 (Central Square days from 13 Feb); Pabis £3,730.69 (employment cost); Bikovs £112.50; Starovoitov £308.75	V0.7 paras 23–24; DOC (Rachel, QuickBooks, invoices)	Evidenced £8,381.94; claim £7,997.25. Kogut's confirmation of his invoice outstanding
15 Feb	Invoice 554 (£1,891) dated 15 Feb	V0.7 para 21	You accept he worked the days in 553 and 554
18 Feb	You message Mikheil on WhatsApp asking where the signage is; no reply	V0.7 para 20; DOC (MG5)	His phone called yours at 14:24 that day (MD14). **[CONFIRM]** whether you spoke

Date and time	Fishbone's account	Basis	Notes
22 Feb	He messages for payment	V0.7 para 20; DOC	
23 Feb	You reply that Fishbone's payment is held until handover	V0.7 para 20; DOC	The reason you gave at the time was not the defects
27 Feb	He asks again; you say handover is Monday, then you will call to discuss closing the matter; he replies "Ok, thanks"	V0.7 para 20; DOC (MG5)	
3 Mar to 16 Mar	MSEM's emails and letters before action; final notice 16 Mar for invoices 553 and 554	DOC	
18 Mar	You dispute the invoices in writing, citing incomplete work, delay, defects, site management and the cost of rectification (MG9)	V0.7 para 22	MSEM says it asked for supporting documents on 18 and 27 Mar and received none. **[CONFIRM]** what, if anything, was sent
13 and 15 May	Chronology prepared and registered (FC0000004)	DOC	Contains errors listed below

Figures

- MSEM's net claim: £3,031.20 (553: £1,898 less £379.60 CIS; 554: £1,891 less £378.20 CIS).
- Fishbone's counterclaim: £7,997.25 claimed; £8,381.94 evidenced.
- Net counterclaim if allowed: £4,966.05.

What changes from the Chronology we filed (FC0000004)

1. "Following the handover inspection on **12** Feb Mikheil left the site and ceased communication": documents show he worked on 13 Feb and wrote at 16:05; he messaged about pay on 22 and 27 Feb. Use **13 Feb**.
2. "Mikheil attended the 30 Jan pre-handover meeting on behalf of Fishbone": no document shows this; he says it was a Roath Lock meeting.
3. "Several telephone discussions" on 2–6 Feb: your records show calls on 3 and 5 Feb only; his phone called you on 3 and 6 Feb.
4. "9 Feb site visit by you and Andrejus": no document supports it.
5. "Two additional subcontractors Sebastian and Dainius dispatched on 12 Feb": Pabis was crossing from Guernsey.
6. The remedial-works section appears twice and the £ figure is written two ways.

What I would not put in any statement until confirmed

- Where you and Andrejus were on 3, 8, 9, 13 Feb.
- What Mikheil said on 30 Jan, 3 Feb, 6 Feb and 18 Feb.
- The J4 call date; any detail on the Friday condition beyond your own account.
- What Pabis and Drulia saw first-hand on 13 Feb.